IN THE SUPREME COURT OF INDIA

INHERENT POWERS & CRIMINAL QUASHING JURISDICTION

(Division Bench (2 Judges))

CASE NUMBER: Civil Appeal No. 5412 of 1990 **CNR: SCIN010054121990**

REPORTABLE CITATION: 1992 Supp (1) SCC 335 DATE: November 21, 1990

CORAM: Hon'ble S. Ratnavel Pandian & K. Jayachandra Reddy, JJ.

State of Haryana and Others v. Bhajan Lal and Others

State of Haryana and Others ...PETITIONER(S)

VERSUS

Ch. Bhajan Lal and Others ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Code of Criminal Procedure, 1973, Prevention of Corruption Act, 1947 | Sections: Section 482 CrPC, Art

The locus classicus establishing seven definitive categories of cases where High Courts may exercise inherent jurisdiction under Section 482 CrPC or extraordinary powers under Article 226 to quash criminal proceedings. The master judgment used by courts across India to dismiss groundless, malicious, or fabricated criminal cases when the allegations even if accepted as true do not disclose any offence.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety, do not prima facie constitute any offence or make out a case against the accused, or where criminal proceeding is manifestly attended with mala fide and/or instituted maliciously with an ulterior motive, the High Court has inherent power under Section 482 CrPC to quash the proceedings.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Seven Guiding Principles for Section 482 Formulated (Outcome: Allowed in Part)

Precedential Authority: Good Law (Binding Precedent)

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